

24NWCV00676 24NWCV00676

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CABELLO v. NISSAN NORTH AMERICA., INC.

CASE NO.: 24NWCV00676

HEARING: Tuesday, July

14, 2026, at 9:30 AM

Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$6,392.80 in attorney's fees. The Court reserves ruling on costs.

This amount is to be paid by no later than 90 days from the date of the Court's issuance of this Order. This date may be extended by agreement of the parties.

Moving Party to give notice.

Background

The relevant procedural history of this case is as follows: On March 5, 2024, Plaintiff LEOPOLDO CABELLO("Plaintiff") filed this lemon law action against Defendants NISSAN NORTH AMERICA INC. ("Defendant"); CERRITOS NISSAN; and DOES 1 through 10, inclusive. The case resolved once Plaintiff accepted Defendant's § 998 settlement offer.

Plaintiff now moves for attorney's fees in the amount of \$5,650.00

and an additional \$2,700 in fees read Defendant's opposition, prepare a reply, and attended the hearing on the instant motion. Plaintiff also seeks to recoup \$942.80 in costs.

Prevailing Party

Cal. Civ. Code §1794(d) states, "[i]f the buyer prevails in an action under [the Song Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

It is undisputed that Plaintiff is the prevailing party and is entitled to reasonable attorney's fees. The only issue pending before this Court is the amount of the award.

Attorney's Fees

The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorney's fee award, courts typically determine what is reasonable through the application of the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (*Serrano v. Priest* ("Serrano III") (1977) 20 Cal.3d 25, 48); (See also *Meister v. Regents of University of California* (1998) 67 Cal.App.4th 437, 448-449 holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation). Normally, a "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) That amount may then be adjusted through the consideration of various factors, including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The Court is vested with discretion to determine which claimed hours were reasonably spent, and what an attorney's

reasonable hourly rate is. (*Dover Mobile Estates v. Fiber Form Products, Inc.* (1990) 220 Cal.App.3d 1494, 1501); (See also *Flannery v. California Highway Patrol* (1987) 61 Cal.App.4th 629, 644.) ["We readily acknowledge the discretion of the trial judge to determine the value of professional services rendered in his or her court."].

Plaintiff's Counsel's Firm MFS Legal, Inc. bills at a rate from \$150/hr. (paralegal rate) to \$525/hr (attorney rate). (See *Avila Decl.*, ¶ .) A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexier* (2000) 22 Cal.4th 1064, 1095.) Based on the declarations submitted by Counsel, the Court finds that Plaintiff Counsels' hourly rates are reasonable.

The Court's next determines whether the number of hours billed is reasonable. (*Dover Mobile Estates v. Fiber Form Products, Inc.* (1990) 220 Cal.App.3d 1494, 1501.)

Plaintiff

seeks \$9,292.80 in attorney's fees and costs. Defendant counters and ask the Court to award \$3,103.50 and no costs. Upon review of Plaintiff's billing records, the Court finds that neither position is correct.

The Court has carefully reviewed the declarations submitted by counsel. The Court agrees with opposing counsel that a few of Plaintiff's time entries are excessive and duplicative. For instance, Plaintiff's request for six future hours totaling \$2,700 in fees is excessive. In other words, Plaintiff seeks over one third of requested fees for time spent responding to Defendant's opposition and attending the instant hearing.

Costs

The prevailing buyer shall be allowed to recover as a part of the judgment a sum equal to the aggregate amount of costs and expenses. (Civ. Code § 1794(d).)

A verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." *Adams v. Ford Motor Co.* (2011)

199 Cal.App.4th 1475, 1486 (citations and quotations omitted).

“Documentation must be submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs.” *Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308. However, “mere statements in a motion to strike and attorney declaration are insufficient to rebut the prima facie showing.” *Rojas v. HSBC Card Services Inc.* (2023) 93 Cal.App.5th 860, 896.

For the ease of the Court and Counsel, the Court orders Plaintiff to file a memorandum of costs within ten (10) days of the Court's issuance of this order.

Thereafter, the parties can agree to the costs incurred or Defendant may file a motion to tax costs.

Conclusion

Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$6,392.80 in attorney's fees and reserves ruling on costs.